

1. VS

- **Law:**

- Law is a system of rules that a society or government develops to regulate behavior, enforce justice, and provide order. It ensures that rights are protected and obligations are fulfilled, underpinned by penalties for violations.
- Example: Traffic laws, criminal laws, contracts, etc.

- **Morality:**

- A system of principles and values concerning what is right or wrong, good or bad, often influenced by culture, religion, philosophy, and personal beliefs.
- Example: Telling the truth, helping others, not lying.

Key Differences

Aspect	Law	Morality
Purpose	Maintain order and justice.	Guide personal and social behavior.
Enforcement	By government institutions.	By society or personal conscience.
Scope	Narrower, focuses on public matters.	Broader, includes private actions.
Penalty for Violation	Legal punishment (fines, prison).	Social disapproval, guilt, or shame.

2. VS

Civil and Political (CP) Rights

- **Definition:** These rights ensure an individual's freedom from infringement by governments, social organizations, and private individuals and protect the ability to participate in the civil and political life of the state without discrimination.

Economic, Social, and Cultural (ESC) Rights

- **Definition:** These rights guarantee individuals access to essential economic, social, and cultural conditions needed for a life of dignity and well-being.

Key Differences

Aspect	CP Rights	ESC Rights
Focus	Protect individual freedoms.	Ensure basic economic, social, and cultural needs.
Obligation Type	Negative (non-interference).	Positive (state action required).
Implementation	Immediate (no torture, free speech).	Progressive (housing, healthcare).
Examples	Freedom of speech, voting rights.	Right to education, health, work.
Enforcement	Easier to monitor and enforce (laws and courts).	Relies on state capacity and resources.

- **Contractual obligations**

In **Bangladesh**, contractual obligations are governed by the **Contract Act, 1872**, which provides the legal framework for the formation, performance, and enforcement of contracts. Here's a breakdown of the contractual obligations as they apply in Bangladesh:

1. Key Features of Contractual Obligations in Bangladesh

- **Voluntary Agreement:** Contracts must be formed through mutual consent.
 - **Legal Enforceability:** A contract is enforceable by law if it meets the requirements under the Contract Act.
 - **Obligatory Fulfillment:** Parties are bound to perform the obligations specified in the agreement unless discharged under the law.
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2. Essential Elements of Contractual Obligations

1. Offer and Acceptance:

- A valid contract begins with a lawful offer by one party and its acceptance by another.
- Example: A supplier offers to deliver goods, and the buyer accepts the terms.

2. Consideration:

- Something of value must be exchanged between the parties (money, goods, services, etc.).
- Example: A contractor provides services in exchange for agreed-upon payment.

3. Competency of Parties:

- Both parties must be of sound mind, not minors, and legally capable of entering into contracts.

4. Lawful Object:

- The purpose of the contract must not violate any laws or public policy.

5. Certainty and Possibility:

- Obligations must be clear, specific, and practically achievable.
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❖ 3. Common Contractual Obligations

1. Business Transactions:

- Fulfillment of supply chain agreements.
- Payment terms for goods or services.

2. Employment Contracts:

- Employers are obligated to pay wages, provide safe working conditions, and adhere to labor laws.
- Employees are bound to perform duties as outlined in their job contracts.

3. Lease Agreements:

- Landlords and tenants are obligated to honor rent terms, maintenance, and use of property.

4. Construction Contracts:

- Contractors must complete work according to specifications and timelines.
 - Clients must ensure timely payments as per agreed milestones.
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4. Remedies for Breach of Contract in Bangladesh

If a party fails to fulfill contractual obligations, the other party can seek remedies under the Contract Act, 1872:

1. **Compensation for Damages:**

- Monetary compensation for losses resulting from the breach.

2. **Specific Performance:**

- A court order requiring the breaching party to fulfill their contractual obligations.

3. **Rescission:**

- The non-breaching party can cancel the contract.

4. **Injunctions:**

- Preventing a party from taking actions contrary to the contract.

Enforcement of fundamental rights

The enforcement of fundamental rights in Bangladesh is a key element of its constitutional framework, ensuring the protection and promotion of citizens' basic rights and freedoms. These rights are enshrined in *Part III of the Constitution of Bangladesh (Articles 26–47A). Below is an overview of how these rights are enforced:

1. Constitutional Provisions

- Justiciability of Fundamental Rights*: Article 44 grants citizens the right to move the High Court Division (HCD) of the Supreme Court for the enforcement of fundamental rights.
- Supremacy of the Constitution*: Article 7 establishes the Constitution as the supreme law, making any laws inconsistent with fundamental rights void.

2. Role of the Judiciary

- *High Court Division (HCD)*: Under Article 102, the HCD can issue writs (e.g., habeas corpus, mandamus, certiorari, prohibition, and quo warranto) to enforce fundamental rights.

- ***Judicial Activism***: The judiciary has often intervened to protect rights, especially through public interest litigation (PIL), which allows individuals or organizations to file cases on behalf of disadvantaged groups.

3. Public Interest Litigation (PIL)*

PIL has been instrumental in enforcing fundamental rights, particularly for marginalized and underprivileged communities. NGOs and rights groups frequently file such cases to address violations of:

- Environmental rights
- Labor rights
- Women's and children's rights

Notable cases:

- ***BLAST vs. Bangladesh***: Addressed police abuse of power.
- ***State vs. Secretary, Ministry of Law***: Dealt with prisoner rights.

4. Statutory Bodies and Institutions*

Several government and independent bodies play roles in upholding fundamental rights:

- ***National Human Rights Commission (NHRC)***: Investigates human rights violations and recommends corrective measures.
- ***Anti-Corruption Commission (ACC)***: Addresses corruption, which indirectly affects the realization of fundamental rights.
- ***Legal Aid Services***: The government provides free legal aid to financially disadvantaged individuals.

5. Legislative Measures*

Bangladesh has enacted various laws to protect fundamental rights, such as:

- The Child Marriage Restraint Act
- The Right to Information Act
- The Prevention of Women and Children Repression Act

6. Limitations and Challenges*

Despite constitutional guarantees, enforcement faces challenges, including:

- Political interference in the judiciary
- Corruption within law enforcement agencies
- Lack of awareness among citizens about their rights
- Delays in judicial proceedings
- Limited resources for legal aid

7. Recommendations for Better Enforcement*

- Strengthening the independence of the judiciary
- Enhancing the capacity and resources of the NHRC
- Raising awareness of fundamental rights through education and media
- Expediting case resolution through judicial reforms
- Ensuring accountability of law enforcement agencies

The enforcement of fundamental rights in Bangladesh is vital for maintaining justice, equality, and the rule of law. While progress has been made, significant efforts are still required to overcome existing challenges.

Classification of Laws in Bangladesh

Constitutional Law

- Constitution of the People's Republic of Bangladesh

Criminal Law

Penal Laws

- Penal Code, 1860
- Special Criminal Laws (e.g., Anti-Terrorism Act)

Procedural Laws

- Code of Criminal Procedure, 1898 (CrPC)

Evidence Laws

- Evidence Act, 1872

Civil Law

Contract Law

- Contract Act, 1872

Tort Law

Family Law

- Muslim Personal Law
- Hindu Personal Law
- Christian Personal Law
- Special Marriage Act, 1872

Property Law

- Transfer of Property Act, 1882
- Registration Act, 1908
- Land Laws (e.g., Land Reforms)

Procedural Laws

- Code of Civil Procedure, 1908 (CPC)

Commercial Law

Company Law

- Companies Act, 1994

Banking Laws

- Banking Companies Act, 1991

Insurance Laws

- Insurance Act, 2010

Intellectual Property Laws

- Copyright Act, 2000
- Trademarks Act, 2009
- Patents and Designs Act, 1911

Arbitration Laws

- Arbitration Act, 2001

Labour and Employment Law

- Labour Act, 2006

Environmental Law

- Environmental Conservation Act, 1995

Cyber Law

- Information and Communication Technology Act, 2006

Human Rights and International Law

- Universal Declaration of Human Rights (UDHR)
- International Covenants (e.g., ICCPR, ICESCR)
- Domestic Implementation of Treaties

Special Laws

- Anti-Corruption Commission Act, 2004
- Women and Child Repression Prevention Act, 2000
- Narcotics Control Act, 2018
- Other Specialized Acts

Next:

Cort structure{lac-1=6 to 11},

Human rights{con.fandamental=5 to 8}

❖ Discharge of Contract??

Discharge of Contract

Discharge of a contract denotes the end of the parties' contractual agreement. Discharge of contract, to put it simply, signifies the end of the agreement. Modes of discharge of contract:

1. *Discharge by performance* – When the parties to a contract fulfill the obligations arising under the contract within the time and manner prescribed, then the contract is discharged by performance.
2. *Discharge of a Contract by Lapse of Time* – The 1908 Limitation Act establishes a deadline for contract performance. The promisee cannot pursue legal recourse if the

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promisor breaches the agreement and they don't act within the allotted time frame. The contract is discharged because of the time lapse.

3. *A contract may be discharged by operation of law in the following cases* – 1) Death – a) If contract involves personal skill then contract is discharged b) If contract does not involve personal skill then the rights and liabilities of the deceased person will pass on to his legal representatives. 2) Insolvency – The insolvency of the promisor discharges the contract etc.
4. *Discharge by breach of contract* – A party is in breach of a contract when he or she fails to fulfill their commitments of the contract. A contract's obligations come to an end when it is breached.
5. *Discharge by impossibility of performance* – When performance is impossible, the contract is discharged. Since the law does not compel people to do things that are impossible, any agreement that is impossible is void.